

SHAMROCK ACRES ROAD DISTRICT BYLAWS

ARTICLE I

NAME AND LOCATION

Shamrock Road District hereinafter sometimes referred to as "Road District". The official address of the Road District shall be ?? Pierre, SD 57501, but meeting of members and trustees may be held at such places within the State of South Dakota, County of Hughes or as designated by the Board of Trustees.

The Hughes County Commissioner approved the SHAMROCK ACHERS Road District July 17th, 2006.

The Employer Identification Number, form SS-4 is ???

ARTICLE II

PURPOSE OF ROAD DISTRICT

To Maintain and improve the roads contained in the Road District description.

The Road District will be maintained, managed and financed as per SDCL Chapter 12A, COUNTY ROAD DISTRICT and statutes referenced in Chapter 12A relating to Road Districts.

ARTICLE III

CONFLICT WITH SOUTH DAKOTA LAWS

These Bylaws shall be used as a management tool for the Board of Trustees, however where there is a conflict with the South Dakota Laws and Statutes, then the South Dakota Laws shall control.

ARTICLE IV

YEARLY ELECTION-ANNUAL MEETING -BOARD MEETINGS

Yearly Board of Trustee elections will be held at a convenient place, selected by the Board of Trustees. The terms of the trustees are for one (1), two (2) and three (3) years with all newly elected trustees coming on for a term of three years and thereafter that the trustee with the one (1) year term would be President, the trustee with the two (2) year term would be Vice-President and the trustee with the three (3) year term would be the Vice-President-Elect and with each new trustee coming on as Vice-President-Elect and progressing each year until becoming President in the third year. This way each new trustee coming on to the board would have two years to learn how the Road District operates before becoming President. In case of inclement weather, the election will be postponed on a monthly basis until it can be conveniently held. [31-12A-15 & 16] The judges shall subscribe and certify a statement of the persons elected to fill the offices of trustees in such Road District and file the same with the county auditor within ten days after the date of such election. [31-12A-16]

An annual meeting for the members of the Road District will be held on the 2nd Tuesday of May. A written notice will be sent to each member of the Road District at least 7 days before the meeting. The notice will specify the date, time, place and purpose of the meeting. [31-12A-15 & 16]

The Board of Trustees will meet each quarter second Tuesday of the month (February, May, August, November). Residents of the Road District are encouraged to attend and will be notified by the board by sign and in writing. Unscheduled meeting can be called given 3 working day notice by one of the Board of Trustees. It will be the responsibility of the Trustee organizing the unscheduled meeting to advise the Road District either by phone or written notice. In addition, an unscheduled meeting can be called upon written request by ten (10) percent of the Road District members.

ARTICLE V

BOARD OF TRUSTEES TENURE/REMOVAL

Any Trustee may be removed from the board, with or without cause, by a majority vote of all the members in the Road District. All Trustees need to be a resident home owner of Shamrock Acers. All Trustees need to be current on obligations to the Road District.

ARTICLE VI

VACANT BOARD OF TRUSTEE POSITION

If a Trustee vacates the elected position for any reason, the remaining Board of Trustees will select a resident from the Road District who is a registered voter in the road district to fill the balance of the unfilled term.

ARTICLE VII

LIMITED HOUSEHOLD PARTICIPATION AS A BOARD OF TRUSTEE

Only one member of a household can serve on the Board of Trustees at a time. However, the household member(s) may serve in other capacities as required by the Board of Trustees.

ARTICLE VIII

REVENUE

Road District funds will be collected through the Hughes county auditors office in the form of a special assessment. [31-12A-21]

CONTINGENCY FUND

The Road District may establish a "CONTINGENCY FUND" or "RESERVE FUND" for the sole purpose of creating financial stability to the Road District. This fund would be used to offset unexpected expenses from budgeted items identified in the annual budget or unexpected expenses from non-budgeted items. Non-budgeted items will have the majority approval of the Road District Members.

ARTICLE IX
AMENDMENTS

These Bylaws may be amended at a regular or special meeting of the Road District members by a vote of a majority of a quorum of members present, in person at the meeting or by proxy.

ARTILCE X
FISCAL YEAR AND YEARLY AUDITS

The Road District fiscal year will be January 1st to December 31st of each year except for the first year. An audit will be conducted on the Road District books in the first quarter of each year concluding with a report to the Board of Trustees. The audit committee will consist of one Trustee and 2 members from the Road District. The audit is not to be conducted by the Trustee that is acting as the treasurer.

ARTICLE XI
QUORUM/PROXIES

The presence at the meeting (personally or by proxy) of twenty percent (20%) of the members of the Road District shall constitute a quorum for any action requiring confirmation and approval of Board of Trustee, and road matters of any subject directly related to the maintenance and improvement of the road in the Road District. If however, such quorum, shall not be present or represented at any meeting, the number entitled to vote there at a particular meeting shall have power to adjourn the meeting from time to time, without notice other than announcement at the meeting, until a quorum as aforesaid shall be present or be represented. [31-12A-19]

At all meeting of the Road District, each member may vote in person or by proxy. All proxies shall be in writing and filed with the Road District secretary prior to the meeting being called to order.

ARTICLE XII
BOARD ACTION WITHOUT A FORMAL MEETING

The Board of Trustees shall have the right to take action in the absence of a meeting, which they could take at a meeting, by obtaining the written or telephone approval of all the trustees. Any action so approved shall have the same effect as though taken at a meeting of the Board of Trustees. Such actions will be so noted in the minutes of the next meeting.

ARTICLE XIII
TRUSTEE POWERS

Per [31-12A-21] the Board of Trustees may:

- (1) Appoint a treasurer and a clerk, an engineer, attorney, and other employees for the road district and fix their compensation. These officers shall hold their respective offices at the pleasure of the board, and be

bonded for the faithful performance of their duties as may be required by the board.

- (2) Sue and be sued and contract in the name of the district;
- (3) Adopt a corporate seal;
- (4) Construct roadways and maintain them;
- (5) Borrow money, levy taxes and special assessments, and issue bonds pursuant to [31-12A-23];
- (6) Establish speed and weight limits and other restrictions on roads under the road district's jurisdiction in the provisions of [32-14-3] to [32-14-7], inclusive, [32-22-47] and [32-25-9-1].

Power of trustees to pass and enforce ordinances and regulations. The Board of Trustees shall have the power to pass all necessary ordinances, resolutions, orders, rules, and regulations for the proper management of conduct of the business of said Road District. And to carry into effect the ordinances, orders, resolutions, rules, and regulation of said road district for the business for which such district is formed. [31-12A-22]

ARTICLE XIV

TRUSTEE INDEMNIFICATION

The Road District shall indemnify and member of the Board of Trustees who was, or is, a party, or is threatened to be made a party, to any threatened, pending or completed action, suit, or proceeding, whether civil, criminal, administrative, or investigative other than an action by or in the right of the Road District by reason of the fact that the person is or was a member of the Board of Trustees of the Road District, or is or was serving at the request of the Board of Trustees of the Road District, against expenses, including attorneys' fees judgments, fines, and amounts paid in settlement actually and reasonably incurred by that person in connection with the action, suit or proceeding, if that person acted in good faith and in a manner that person reasonably believed to be in or not opposed to the best interests of the Road District and respect to any criminal action or proceeding, had no reasonable cause to believe such conduct was unlawful. [SDCL47-23-29]